



**DEPARTMENT OF THE NAVY
SOUTHWEST REGIONAL MAINTENANCE CENTER
3755 BRINSER ST STE 1
SAN DIEGO, CA 92136-5299**

Code: 440A
Contract Number: N00024-24-C-4408
Date: 28 March 2025

**JUSTIFICATION AND APPROVAL
FOR USE OF OTHER THAN FULL AND OPEN
COMPETITION**

1. CONTRACTING ACTIVITY

The Naval Sea Systems Command, Southwest Regional Maintenance Center (N55236), Contracting Department Code 440A, 3755 Brinser Street, Suite #1, San Diego, CA 92136-5299. Contracting ACO: Jacob Fox, Jacob.w.fox.civ@us.navy.mil

2. DESCRIPTION OF THE ACTION BEING APPROVED:

Sole source contract action is to add two (2) Preventative Maintenance Availability (PMAV) Packages at a Firm Fixed Price to BAE Systems San Diego Ship Repair Inc. (BAE) under Contract N00024-24-C-4408 awarded for USS MOBILE (LCS 26) Fiscal Year 2025 (FY25) Docking Selected Restricted Availability (DSRA).

PMAV Packages to be incorporated:

- a. PMAV 25P6 ADD1
- b. PMAV AFFF Hoses

3. DESCRIPTION OF SUPPLIES/SERVICES:

- a. The procurement is to accomplish two (2) Preventative Maintenance Availability (PMAV) Packages (PMAV 25P6 ADD 1 and PMAV AFFF Hoses2) on the USS MOBILE (LCS-26) as detailed in the PMAV packages. Key Dates are detailed in Section J Attachment J-3 Execution Milestones and Key Events Rev 1.
- b. Total Value: [REDACTED]. Funding will be FY25 OPN-TYCOM.
- c. The work will begin [REDACTED] or as soon as authorized to place on contract and be completed by [REDACTED]. The USS MOBILE (LCS 26) FY25 DSRA start of the availability is [REDACTED] with a Delivery Date of [REDACTED].
- d. The Government's minimum needs have been certified as complete and accurate by the technical and requirements personnel.

4. STATUTORY AUTHORITY PERMITTING OTHER THAN FULL AND OPEN COMPETITION

The statutory authority permitting other than full and open competition is 10 U.S.C. § 3204 (a)(2) as implemented by the Federal Acquisition Regulation (FAR) 6.302-1— this authority applies in those situations where only one responsible source and no other supplies or services will satisfy agency requirements and precludes full and open competition, and delaying in award would result in serious injury to the Government. This availability is the last opportunity to complete this upgrade during the ships availability window and this work is needed to fulfill required operational capability.

5. RATIONALE JUSTIFYING USE OF CITED STATUTORY AUTHORITY.

The two PMAV Packages, consisting of PMAV 25P6 addition 1 and AFFF Hoses were issued in accordance with Section C Paragraph 1.20 in support of the USS MOBILE (LCS 26) Fiscal Year 2025 (FY25) DSRA. These packages consist of 59 orders for a Planned Maintenance System (PMS). This work is required because without PMS checks accomplished, the ship will not be authorized to continue to perform hot work and could affect key events. Littoral Combat Ships (LCS) are designed due to manning requirements that contractors will conduct PMAV work. PMAV AFFF hoses certification is required to support 8010 requirements and DCMA testing, which is required due to the AFFF Hoses being out of calibration. PMAV 25P6 Addition 1 is required to incorporate side door PMS due to the side door wire rope deemed unsatisfactory and will need to be replaced. While there may still be sufficient time within this DSRA to complete the PMS checks, limiting competition will avoid substantial duplication of costs and avoid the potential of unacceptable delays. A sources sought was posted to System for Award Management (SAM) on [REDACTED]. One vendor replied to the sources sought which was Epsilon. After further review, even though Epsilon replied to the sources sought, there is still only one responsible source, BAE, that can satisfy the agency requirements without serious injury to the Government.

Only BAE can satisfy the agency requirements without the Government incurring substantial duplication of costs that are not expected to be recovered through competition. The USS MOBILE is already in BAE System's ship yard undergoing a current production, and BAE therefore already has all the necessary temporary services set up, including air, power, and water. Any other contractor would need to duplicate those services, which are estimated to be approximately [REDACTED], more than the entire value of these two PMAVs. The duplicated costs of competing this work would therefore be so substantial they could not possibly be recovered through competition.

Additionally, only one responsible source, BAE, can satisfy the agency requirements without risking unacceptable delay. The ship is currently in BAE's yard and BAE has already been awarded the CNO. Sequencing work between the CNO and PMAV will cause delays, a risk that increases if more than one contractor need to coordinate. If sequencing of work is not done properly the CNO will need to be extended. Considering the contractual daily extension rate is [REDACTED], any delay risks significant additional costs. The estimated time frame for completion of these repairs is thirty (30) days. While the timeline to re-solicit could possibly support the completion of work prior to the Production Complete (PCD) Milestone [REDACTED], any unexpected delays would mean the work is not completed by PCD. If competed, the timeline for solicitation is projected as follows:

Development of Requirements Package due to contracts by [REDACTED], Solicitation/Request for Proposal (RFP), Respond to Preproposal Inquiries (PPI) and submit required Solicitation Amendments ([REDACTED]), Receipt and Evaluation of proposals by [REDACTED] and execute

Contract Award by [REDACTED] Thus, the required work would commence June at the earliest, and given the 30 days of estimated for completion, the work will end in [REDACTED]. For every day the RCCs are not authorized on contract, it has the potential to impact the scheduled ship training leading to end of avail, therefore, creating a day-to-day delay in schedule. Any delay will impact the milestones and key events in support of the end of availability, and deployment readiness.

This work needs to be accomplished by the Production Complete Date of [REDACTED] in order for the ship to meet its operational and testing requirements that are scheduled after the DSRA. For every day these PMAVs are not on contract, there is the potential to cause a day-to-day delay in the established milestones and potentially the delivery date. Timely completion of this work is critical. Failure to complete the repairs by the Production Complete Date will prevent the ship from achieving certification and accomplishing training to be mission ready. BAE has the means to incorporate the scope of work in 25P6 ADD1 and AFFF Hoses PMAV without significant delays or duplication of costs. By repairing these deficiencies, we can mitigate the risk of further damage and ensure the integrity and longevity of the associated systems.

6. DESCRIPTION OF EFFORTS MADE TO SOLICIT OFFERS FROM AS MANY OFFERORS AS PRACTICABLE:

The original contract was awarded competitively in which BAE was the selected awardee and this work was not on contract under the award. BAE is uniquely positioned to perform the work as the ship is currently under repair by BAE at their shipyard undergoing a Docking Selected Restricted Availability (DSRA), and it is impracticable for another company to perform these support services concurrently with other ongoing repairs currently being completed by BAE. A publication will be posted in accordance with FAR 5.201 once the RCCs are settled.

7. DETERMINATION OF FAIR AND REASONABLE COST:

The Contracting Officer has determined that the anticipated cost to the Government of this acquisition will be fair and reasonable based on cost and price analysis to be conducted pursuant to FAR Part 15. In addition, technical analysis will be performed with the Project Manager to ensure the proposed labor hours, material cost, and subcontractor cost correspond with the expected cost or Independent Government Estimate (IGE). The basis of estimate for the IGE was developed utilizing the SWRMC Estimating Guide and the Ship Build Specialist's knowledge of the requirements. The ship repair market is well known to the contracting officer based on his in-depth experience in the field. That said, additional market research beyond the above was not conducted due to the fact that the ship is already in BAE's shipyard undergoing major repairs and it is impracticable for another company to perform the work.

8. ACTION TAKEN TO REMOVE BARRIERS TO COMPETITION:

Upon discovery of the repairs, discussions commenced with Government leadership to analyze the best course of action given the availability's cost, schedule, and the available options. Due to the time restraint on when the work was to be completed to not impact the overall availability schedule and various other sequenced working events, it was determined that there was not sufficient time to solicit out the new work. Cost was also a factor as BAE would most likely have the better price due to already having the ship in their shipyard and the services already made readily available. Due to the high likely hood of a higher cost to the government and unacceptable timeframes outside the

awarded availability schedule, it is in the Government's best interest to include new works into the contract.

CERTIFICATIONS AND APPROVAL

TECHNICAL/REQUIREMENTS CERTIFICATION (FAR 6.303-2(b))

I certify that the facts and representations under my cognizance, which are included in this justification and its supporting acquisition planning data are complete and accurate to the best of my knowledge and belief.

TECHNICAL COGNIZANCE:

PALOMBA.ANTHONY. [REDACTED] Digitally signed by
[REDACTED] **PALOMBA.ANTHONY.** [REDACTED]
Date: 2025.04.01 08:22:51 -07'00'

Project Manager – USS MOBILE (LCS 26)

REQUIREMENTS COGNIZANCE:

ZACHARIAS.DARIN.LARYSS Digitally signed by
A. [REDACTED] **ZACHARIAS.DARIN.LARYSSA.** [REDACTED]
Date: 2025.04.01 11:04:32 -07'00'

Port Engineer - USS MOBILE (LCS 26)

LEGAL SUFFICIENCY REVIEW (NMCARS 5206.303(90))

I have determined this justification is legally sufficient.

HULLEY.MARTHA.E. [REDACTED] Digitally signed by
[REDACTED] **HULLEY.MARTHA.E.** [REDACTED]
Date: 2025.04.01 11:49:31 -07'00'

Office of Counsel, SWRMC C100
(619) 556-1587

CONTRACTING OFFICER CERTIFICATION (FAR 6.303-2(a)(12))

I certify that this justification is accurate and complete to the best of my knowledge and belief.

FOX.JACOB.W. [REDACTED] Digitally signed by
[REDACTED] **FOX.JACOB.W.** [REDACTED]
Date: 2025.04.01 11:14:19 -07'00'

Administrative Contracting Officer
SWRMC C440A